

**No. RM 5B REQUEST FOR JUDGMENT WHERE THE DEFENDANT HAS
CONSENTED TO JUDGMENT**

Section 58 of the Magistrates' Courts Act, 1944 (Act 32 of 1944)

In the Magistrate's Court for the District of RANDBURG held at RANDBURG

In the matter between:

AFRICAN BANK LIMITED
REG NO: 1975/002526/06

Plaintiff

and

TSHEPISO DOROTHY MPITI
ID:7803010554087
LOAN REF NO: 5334572001

Defendant

Plaintiff requests that judgment in the above-mentioned matter in terms of Section 58(1) of the Magistrates' Court Act, 1944, be noted in Plaintiff's favour against the Defendant as follows:

Amount of debt [Section 58(1)(i)]
Interest at 15.5% per annum accounted from 27/10/2009 until date of final payment thereof
Court fees (only when this is the first document in action) (Section 59)
Letter of demand (Section 56)
Summons, if any (attorney's charges court fees, sheriff's fees and sheriff's fees on re-issue [Section 58(1)])
Cost of notice in terms of Rule 54(1)

Judgment	Costs
Debt	
19182.46	
R19182.46	0.00
	R0.00
	R19182.46

TOTAL

Costs to be taxed on Attorney and Client Scale plus Interest from 27/10/2009 until final date of payment and that payment thereof take place in accordance with the Defendant's consent.

The following documents are attached:

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| (a) | Copy of Loan Agreement and affidavit in support of and copy of Loan Agreement | Page 1-9 |
| (b) | Affidavit from the Plaintiff confirming the service of the Section 129(1)(a) letter. | Page 10 |
| (c) | A copy of a Notice in terms of Section 129(1)(a) of the National Credit Act 24 of 2005 (hereinafter called "the Act") which was duly delivered to the Defendant on 28 April 2009 | Page 11 |
| (d) | A copy of the letter of demand sent to the Defendant in terms of Section 56 of the Magistrates' Court Act 1944. | Page 12 |
| (e) | The Defendant's written consent to Judgment in terms of Section 58 of the Magistrates' Court Act 32 of 1944 and costs. | Page 13 |
| (f) | Affidavit supporting breakdown of Capital amount claimed. | Page 14 |
| (g) | Certificate of Balance and NCA Certificate. | Page 15 |
| (h) | NCR Certificate. | Page 16-17 |
| (h) | Debtors Employment Confirmation | Page 18 |

Please take note that the Debtor is employed within the Jurisdiction of the above mentioned Honourable Court.